

Don Lee v. Bank of America, N.A., et al.

20CV44796

**MOTION FOR ORDER REQUIRING PLAINTIFF LEE AS A VEXATIOUS LITIGANT
TO FURNISH SECURITY AND FOR A PREFILING ORDER**

Defendant Bank of America, N.A. (BANA) moves, pursuant to Code of Civil Procedure section 391 *et seq.*, for an order requiring Mr. Lee to furnish security in this action, and for a pre-filing order prohibiting Mr. Lee from filing any new litigation in the courts of this state without first obtaining leave of the court where the litigation is proposed to be filed. BANA so moves on the grounds that “Lee is a litigant who files unmeritorious motions, pleadings, and papers [and] there is no reasonable probability that Lee will prevail in this action against Bank of America [and] Lee has repeatedly relitigated the settled 2014 action between him and Bank of America.” (See Notice of Motion at 2:2-6.)

BANA’s request for judicial notice is GRANTED. The Court takes judicial notice of the subject matters of the request, but with the exception of orders of court, not for the truth of the matters asserted therein.

As relevant here, the governing statute defines the term “vexatious litigant” to mean a person who either: “(2) [a]fter a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined”; or “(3)[i]n any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 391, subs. (b)(2) and (3).)

The Court is unable to conclude that Plaintiff is a “vexatious litigant” under either definition. The Court does not find that the 2017 action (case No. 17CV42098), when filed, was an attempt to relitigate the causes of action, claims, controversies or issues determined in the 2014 action (Case No. 14CV40435). Moreover, it appears uncontroverted that there is an appeal pending in the 2017 action, which necessarily means that it has not been finally determined. As such, Plaintiff does not meet the definition provided in Code of Civil Procedure section 391, subdivision (b)(2).

In arguing that Plaintiff has “repeatedly file[d] unmeritorious motions, pleadings, or other papers,” BANA cites to the following arising out of the 2017 action: an appeal, a “Notice of Compliance with Judgment,” a motion to set aside and vacate judgment (subsequently withdrawn), and a second appeal. (See Support Memo at 2:1-3:4.) While the Court is

sympathetic to BANA's obvious frustration at the course the 2017 litigation has taken, the Court is not prepared to exercise its discretion and declare Plaintiff a vexatious litigant on this record. (See *Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972 [held: evidence was insufficient to support a vexatious litigant designation based on three unsuccessful motions filed over three years as to two separate judgments where the motions were not intended solely to harass, and there was no evidence of persistent or obsessive litigiousness, serious financial harm, or an unreasonable burden on the courts].)

Based on the foregoing, the motion is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff is to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.

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DEFENDANT'S MOTION TO STRIKE PUNITIVE DAMAGES ALLEGATIONS

Defendant Bank of America, N.A. (BANA) moves, pursuant to Code of Civil Procedure sections 435 through 437, to strike, from the First Amended Complaint (FAC), certain allegations and prayers relating to Plaintiff's claim for punitive damages asserted against Bank of America.

The issues raised by the motion are MOOT in light of the Court's concurrent order sustaining BANA's demurrer to the FAC without leave to amend.

The clerk shall provide notice of this ruling to the parties forthwith. BANA to prepare a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.